

SENATE No. 2233

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Barrett

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring an investigation of the advantages and disadvantages of participation by the commonwealth in multi-state or North American regional market-based compliance mechanisms, structures, or systems, including but not limited to the Western Climate Initiative.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/3/2025</i>

SENATE No. 2233

By Mr. Barrett, a petition (accompanied by bill, Senate, No. 2233) of Michael J. Barrett and James B. Eldridge for legislation to require an investigation of the advantages and disadvantages of participation by the commonwealth in multi-state or North American regional market-based compliance mechanisms, structures, or systems, including but not limited to the Western Climate Initiative. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring an investigation of the advantages and disadvantages of participation by the commonwealth in multi-state or North American regional market-based compliance mechanisms, structures, or systems, including but not limited to the Western Climate Initiative.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

- 1 (a) The secretary of the executive office of energy and environmental affairs, in
2 consultation with the department of energy resources and the department of public utilities, shall
3 investigate the advantages and disadvantages of participation by the commonwealth in multi-
4 state or North American regional market-based compliance mechanisms, structures, or systems,
5 including but not limited to the Western Climate Initiative so called, undertaken by the state of
6 California and the Province of Quebec, in order to reduce greenhouse gas emissions from
7 sources or categories of sources, promote compliance with the statewide greenhouse gas
8 emission limits and sublimits established pursuant to chapter 21N of the General Laws, and in
9 other ways provide benefits for the commonwealth.

(b) Not later than March 1, 2027, the secretary shall submit to the clerks of the senate and house of representatives a report on the executive office's investigation of the advantages and disadvantages of participating in such multi-state or regional market-based compliance mechanisms, structures, or systems. The report may include recommendations by the secretary on further pursuing, structuring, and governing potential participation by the commonwealth in such multi-state or regional market-based compliance mechanisms, structures, or systems. If the secretary finds that participation in such a market-based compliance mechanism, structure, or system would be likely to reduce greenhouse gas emissions from sources or categories of sources, promote compliance with the statewide greenhouse gas emission limits and sublimits established pursuant to chapter 21N of the General Laws, and in other ways provide benefits for the commonwealth, the secretary may act pursuant to subsection (c).

(c) Pursuant to subsections (a) and (b), the secretary, or the department of energy resources or the department of environmental protection as the secretary may direct, may take additional steps, up to and including the adoption of regulations, to further pursue, structure, and govern participation by the commonwealth in such market-based compliance mechanisms, structures, or systems; provided, that full and regular participation shall be effective only upon additional approval by the general court.